[Public Land Order 1785]

[1740145]

WISCONSIN

Partially Revoking Executive Order No. 8065 of March 14, 1939, Which Established Necedah National Wildlife Refuge

By virtue of the authority vested in the President by the act of June 25, 1910 (36 Stat. 847), and pursuant to Executive Order No. 10355 of May 26, 1952, it is ordered as follows:

Executive Order No. 8065 of March 14, 1939, reserving and setting apart certain intermingled public lands and lands acquired by the Department of Agriculture as the Necedah Migratory Waterfowl Refuge, the name of which was changed to the Necedah National Wildlife Refuge by Executive Order No. 8319 of January 15, 1940, is hereby revoked so far as it affects the following-described acquired lands:

A parcel of land lying northwest of State Highway No. 173, being part of sec. 1, T. 20 N., R. 2 E., and part of sec. 6, T. 20 N., R. 3 E., 4th P.M., more particularly described as follows:

Beginning at a point at the intersection of the north-south centerline of section 1 and the northwesterly right-of-way boundary of State Highway No. 173, 50 feet from and normal to the centerline thereof; thence

N. 2°05′ W., 89.95 chains to the line between Townships 20 and 21 North which is also the Wood County-Juneau County line; thence with said line;

N. 89°50′ E., 12.56 chains;

N. 89°50′ E., 27.44 chains;

N. 89°51′ E., 33.57 chains;

N. 89°35′ E., 6.66 chains to the intersection of the Wood County-Juneau County line with the northwesterly right-of-way boundary of State Highway No. 173; thence with said right-of-way boundary;

S. 40°29′ W., 118.51 chains to the point of beginning.

The tract described contains 360.49 acres.

ROGER ERNST,
Assistant Secretary of the Interior.

FEBRUARY 3, 1959.

[F.R. Doc. 59-1170; Filed, Feb. 9, 1959; 8:47 a.m.]

[Public Land Order 1786]

[Oregon 06340]

OREGON

Power Site Modification No. 428, Modifying Executive Order of December 12, 1917, Creating Power Site Reserve No. 661, and the Departmental Order of December 12, 1917, Creating Water Power Designation No. 14

By virtue of the authority vested in the President by section 1 of the Act of June 25, 1910, c. 421 (36 Stat. 847; 43 U.S.C. 141), and otherwise, and pursuant to Executive Order No. 10355 of May 26, 1952, it is ordered as follows:

The Executive Order of December 12, 1917, creating Power Site Reserve No. 661, and the Departmental order of December 12, 1917, classifying certain lands as Water Power Designation No. 14, are hereby modified to the extent necessary to permit the grant of a highway right-of-way made by section 2477, United States Revised Statutes (43 U.S.C. 932) to become effective as to those portions of the following-described lands delineated on a map filed by Marion County, Oregon (Oregon 06340), and designated "Marion County Engineering Department, Salem, Oregon, New County Road 960, Location Thro Power Line R/W, Sections 9 and 10, T. 9 S., R. 3 E., W.M.":

WILLAMETTE MERIDIAN

T. 9 S., R. 3 E.,
Sec. 9, NW¼SE¼ and N½SW¼.

The areas described aggregate 120 acres.

ROGER ERNST,
Assistant Secretary of the Interior.

FEBRUARY 3, 1959.

[F.R. Doc. 59-1171; Filed, Feb. 9, 1959; 8:47 a.m.]

[Public Land Order 1787]

[Oregon 05743]

OREGON

Withdrawing Public Land in the Fremont National Forest for Use of Forest Service as an Administrative Site

By virtue of the authority vested in the President by the act of June 4, 1897 (30 Stat. 34, 36; 16 U.S.C. 473) and otherwise, and pursuant to Executive Order No. 10355 of May 26, 1952, it is ordered as follows:

Subject to valid existing rights, the following-described public land within the Fremont National Forest in Oregon is hereby withdrawn from all forms of appropriation under the public land laws, including the mining but not the mineral-leasing laws nor disposals of materials under the act of July 31, 1947 (61 Stat. 681; 69 Stat. 367; 30 U.S.C. 601–604) as amended, and reserved for use of the Forest Service, Department of Agriculture, for an administrative site:

WILLAMETTE MERIDIAN

FREMONT NATIONAL FOREST

Shoe String Creek Administrative Site

T. 37 S., R. 18 E.,
Sec. 4, W½W½ lot 3, E½ lot 4, SW¼ lot 4, and N½N½SW¼NW¼.

The areas described aggregate 54.76 acres.

This order shall take precedence over but not otherwise affect the existing reservation of the lands for national forest purposes.

ROGER ERNST,
Assistant Secretary of the Interior.

FEBRUARY 3, 1959.

[F.R. Doc. 59-1172; Filed, Feb. 9, 1959; 8:48 a.m.]

Title 47—TELECOMMUNICATION

Chapter I—Federal Communications Commission

[Docket No. 12661; FCC 59-78]

PART 2—FREQUENCY ALLOCATIONS AND RADIO TREATY MATTERS; GENERAL RULES AND REGULATIONS

PART 9—AVIATION SERVICES

Additional Channels Through Reduction in Channel Spacing

1. Notice of Proposed Rule Making in the above-mentioned matter was released by the Commission on November 7, 1958. The proposal parallels studies of the air traffic problem by representatives of government and industry, who concluded that additional air traffic control channels were necessary in the band 117.975–132.0 Mc.

2. The Notice, which made provision for the filing of comments by November 26, 1958, was duly published in the FEDERAL REGISTER on November 11, 1958 (23 F.R. 8822). Subsequently, the time for submitting comments was extended to December 11, 1958, by an Order which was released by the Commission November 26, 1958. This Order was duly published in the FEDERAL REGISTER on December 4, 1958 (23 F.R. 9396).

3. Comments in this proceeding were filed by the Aeronautical Flight Test Radio Coordinating Council (AFTRCC) and Aeronautical Radio, Inc. (ARinc).

4. The AFTRCC unqualifiedly favored the proposal, and ARinc favored the proposal also, contingent upon provision being made for geographically separating stations employing the frequencies 126.85 Mc and 126.80 Mc in order to avoid interference. As the result of subsequent conferences between representatives of ARinc, the Federal Aviation Agency, the Civil Aeronautics Administration and the Air Transport Association, ARinc has advised the Commission that it withdraws the request concerning the geographic separation of stations using the frequencies 126.85 Mc and 126.80 Mc, and that it now supports the amendments as are herein ordered.

5. Because of the urgent need for additional frequencies for air traffic control, the public interest would be served by adoption of the amendments in this proceeding.

6. In view of the foregoing, *it is ordered*, That pursuant to the authority contained in sections 303 (b), (c) and (r) of the Communications Act of 1934, as amended, Parts 2 and 9 of the Commission's Rules be amended, effective March 9, 1959, as set forth below and

7. *It is further ordered*, That the proceedings in Docket Number 12661 are hereby terminated.

(Sec. 4, 48 Stat. 1066, as amended; 47 U.S.C. 154. Interprets or applies sec. 303, 48 Stat. 1082, as amended; 47 U.S.C. 303)

Adopted: February 3, 1959.

Released: February 5, 1959.

FEDERAL COMMUNICATIONS COMMISSION,
[SEAL] MARY JANE MORRIS,
Secretary.